

PARTY WITHOUT ATTORNEY OR ATTORNEY NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO.: E-MAIL ADDRESS: ATTORNEY FOR (name):	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
PETITIONER: RESPONDENT: OTHER PARTY:	
REQUEST FOR HEARING AND APPLICATION TO CANCEL (SET ASIDE) VOLUNTARY DECLARATION OF PARENTAGE OR PATERNITY	CASE NUMBER:

INSTRUCTIONS
- Use this form if you want to cancel (set aside) a voluntary declaration of parentage or paternity. The declaration is a form that is usually signed at the hospital after a child is born. It can also be signed anytime after the child was born, even many years later. - Complete items 5–10. For more information about completing this form, see <i>Information Sheet for Completing Request for Hearing and Application to Cancel (Set Aside) Voluntary Declaration of Parentage or Paternity</i> (). - After you complete the form, take the original plus three copies to the court clerk to file. - After you file, copies of the form must be "served" on the other parties in the case and you must file the proof of service with the court. See <i>Information Sheet for Service of Process</i> () for more information about completing a proof of service. - Make sure you go to the court hearing listed in item 1.

NOTICE OF HEARING (FOR COURT USE ONLY)
1. TO ALL PARTIES. A COURT HEARING WILL BE HELD AS FOLLOWS:
a. Date: Time: Dept.: Room: b. Address of court ☐ same as noted above ☐ other (specify):

2. WARNING to the person served with this request: The court may make the requested orders without you if you do not file a *Responsive Declaration to Application to Cancel (Set Aside) Voluntary Declaration of Parentage or Paternity* () and appear at the hearing. (See page 2 of FL-285 for more information and instructions for "serving" your response.)

It is ordered that:

3. ☐ Time ☐ for service ☐ until the hearing is shortened. Service must be on or before (date):
4. ☐ Any responsive declaration must be served on or before (date):

Date: _____

JUDICIAL OFFICER

REQUEST TO CANCEL (SET ASIDE) VOLUNTARY DECLARATION OF PARENTAGE OR PATERNITY

5. Person making this request

- a. My name is:
- b. I am the:
- (1) ☐ Petitioner
- (2) ☐ Respondent
- (3) ☐ Other (specify):

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6. I request that the court:
- a. ☐ order genetic testing and cancel (set aside) the voluntary declaration of parentage or paternity.
 - b. ☐ make a finding that the voluntary declaration of parentage or paternity is void (invalid).
7. Information about the voluntary declaration of parentage or paternity (*attach a copy if you have one*):
- a. Child's name: _____ Child's date of birth: _____
 - b. Names of the people who signed the voluntary declaration:
 - (1) _____
 - (2) _____
 - c. Date signed (*if known*): _____
 - d. Date filed with the Department of Child Support Services (*if known*): _____
8. ☐ Other cases involving the child (*check all that apply*):
- a. ☐ Divorce, legal separation, or nullity (*case number, if known*): _____
 - b. ☐ Parentage, custody, or child support (*case number, if known*): _____
 - c. ☐ Other (*case number, if known*): _____
 - d. ☐ The local child support agency is providing services for the child in (*specify county*): _____
9. ☐ A court order was entered based on the voluntary declaration of parentage or paternity on (*date*): _____, in case number (*specify*): _____
10. Reasons for my request.
- a. ☐ The voluntary declaration of parentage or paternity should be canceled (set aside) because of (*check all that apply*):
 - (1) ☐ Fraud (I was kept in ignorance of the true facts by another person.)
 - (2) ☐ Duress (I was threatened or mentally coerced into signing the declaration.)
 - (3) ☐ Material mistake of fact (I thought the facts were different from what they really are.)

The following reasons apply only to voluntary declarations filed before January 1, 2020, or if you did not sign the declaration.

 - (4) ☐ My mistake, inadvertence, surprise, or excusable neglect
 - (5) ☐ Other (*specify*): _____
 - b. ☐ The voluntary declaration of parentage or paternity is void (invalid) because (*specify*): _____
 - c. Explain the facts that support your request: _____

☐ Contained in the attached declaration.

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

(TYPE OR PRINT NAME)	(SIGNATURE OF PARTY MAKING REQUEST)
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Requests for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the proceeding. Contact the clerk's office or go to www.courts.ca.gov/forms for Request for Accommodations by Persons With Disabilities and Response (). (Civ. Code, § 54.8.)